

Amendment No. 1 to HB1789

White
Signature of Sponsor

AMEND Senate Bill No. 2094

House Bill No. 1789*

by deleting all language after the enacting clause and substituting instead the following:

SECTION 1. Tennessee Code Annotated, Section 49-7-168(b), is amended by deleting the language "49-8-104" and substituting instead the language "49-8-102, 49-8-104,".

SECTION 2. Tennessee Code Annotated, Section 49-7-168, is amended by adding the following as a new subsection:

(d) Notwithstanding §§ 49-8-102, 49-8-104, and 49-9-105, beginning with the 2027-2028 academic year, an institution of higher education in this state shall classify a student who is enrolling in the institution for the first time and who is the spouse of a service member who is a United States citizen or lawful permanent resident of the United States, but who has not resided in this state for the one-year period described in subdivision (c)(1)(B), as an in-state student for tuition purposes if the spouse:

(1)

(A) Is a United States citizen; or

(B) Is a lawful permanent resident of the United States;

(2) Is accepted for admission to the institution;

(3) Enrolls as a student in the institution;

(4) Resides in this state while enrolled in the institution; and

(5) Maintains continuous enrollment in the institution.

SECTION 3. Tennessee Code Annotated, Section 49-7-1303, is amended by deleting subdivision (1) and substituting instead the following:

(1) "Military-affiliated" means active-duty military personnel, reservists, members of the national guard, reserve officer training corps program cadets, and dependents of active-duty military personnel or veterans;

SECTION 4. Tennessee Code Annotated, Section 49-7-1304, is amended by adding the following as a new subsection (c):

(c) Notwithstanding subsection (b), beginning with the 2027-2028 academic year, the board of regents, the board of trustees of the University of Tennessee, and each state university board of trustees shall classify a veteran or military-affiliated individual who is enrolling in an institution governed by the respective board for the first time, as a Tennessee resident who is not required to pay out-of-state tuition or an out-of-state fee if the veteran or military-affiliated individual is:

- (1) Enrolled in the public institution of higher education; and
- (2) Resides outside the state of Tennessee.

SECTION 5. This act takes effect upon becoming a law, the public welfare requiring it.